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Sri Lanka Extradition Amendment Act

ACTS OF SRI LANKA
Extradition (Amendment)
Act No 48 of 1999

AN ACT AMEND THE EXTRADITION LAW NO 8 OF 1977

BE it enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows;-

Short title.

1. This Act may be cited as the Extradition (Amendment) Act No. 48 of 1999.

Amendment of Section 7 of the Law, No, 8 of 1977.

2. Section 7 of the Extradition Law, No, 8 of 1977 (hereinafter referred to as the "principal enactment") is hereby amended in subsection (4) of that section by the substitution for all the words from "include" to the end of that subsection of the following :-

"include-

(a) an offences against the life or person of the head of any designated Commonwealth country or treaty state ;

(b) an offence which, under the terms of the extradition arrangement made by the Government of Sri Lanka with the requesting treaty state, is not regarded as a political offence ;

(c) an offence within the scope of an international convention relating to the suppression of international crime to which Sri Lanka and the requesting designated commonwealth country or treaty state are contracting parties and which obliges contracting parties to prosecute or grant extradition for such offence ; and

(d)any related offence described in subsection (3) of section 6.".

Amendment of Section 9 of the principal enactment.

3. Section 9 of the principal enactment is hereby amended as follows:-

(1) in subsection (1) of that section, by the repeal of paragraph (b) of that subsection, and the substitution of the following paragraph therefor : -

(i) is in, or

(ii) is believed to be on his way to, Sri Lanka."; and

(2) in subsection (3) of that section, by the substitution, for the words "information and evidence, or certified copy", of" the words "information and evidence, if any, or certified copy".

Amendment of section 23 of the principal enactment.

4. Section 23 of the principal enactment is hereby amended by the substitution , in the definition of "foreign state", for the words "within the Commonwealth ,", of the words "within the Commonwealth and shall be deemed to include the Hong Kong Special Administrative Region of the People's Republic of China;".

Amendment to the Schedule to the principal enactment .

5. The Schedule to the principal enactment is hereby amended by the insertion immediately before Part B of that B of that Schedule, of the following items :-

42. An offence against the law relating to Explosives.

43. An offence within the scope of an international convention relating to the

suppression of international crime, in respect of which Sri Lanka and the requesting state are contracting states and which obliges the contracting states to prosecute or grant extradition for such offence".

Sinhala text to prevail in case inconsistency.

6. In the event of any inconsistency between the Sinhala and Tamil texts to this of this Act , the Sinhala text shall prevail.